

The Invalidation Of Hindu Ceremonial Emoluments Act, 1926

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State of Maharashtra - Act

The Invalidation Of Hindu Ceremonial Emoluments Act, 1926

MAHARASHTRA

India

The Invalidation Of Hindu Ceremonial Emoluments Act, 1926

Act 11 of 1926

Published in Gazette 11 on 13 October 1926

Assented to on 13 October 1926

Commenced on 13 October 1926

[This is the version of this document from 13 October 1926.]

[Note: The original publication document is not available and this content could not be verified.]

The Invalidation Of Hindu Ceremonial Emoluments Act, 1926

[13 October 1926]

ACT NO. XI OF 1926.

An Act to amend the law relating to the emoluments claimable by hereditary Hindu priests.

WHEREAS it is expedient to amend the law relating to the enoluments claimable by hereditary Hindu priests and whereas the previous sanction of the Governor General required under section 80A (3) of the Government of India Act has been obtained for the passing of this Act : It is hereby enacted as follows :?

1.

Short title.

This Act may be called the Invalidation of Hindu Ceremonial Emoluments Act, 1926.

2.

Extent and commencement.

(1)

This Act shall apply to the whole of the Presidency of Bombay.

(2)

It shall come into operation on the first day of April 1928.

3.

Definitions.

In this Act?

" Ceremonial emoluments" means all perquisites, fees and any other dues claimable by any person for religious ceremonials on account of his being a hereditary priest or an alienee from hereditary priest.

4.

Right to claim ceremonial emoluments.

No person shall be entitled to claim, as a matter of right, any ceremonial emoluments from any Hindu who does not call in the services of the person claiming those emoluments.

5.

Hereditary priest may be relieved of his obligation to perform services.

After this Act comes into operation?

(i)

every hereditary priest who holds no inam land or receives no cash allowance as remuneration for the performance of his services to the village shall be deemed to be relieved of his obligation to perform such services when required by any villager to officiate or to provide a substitute to officiate at any religious ceremony in the village.

(ii)

a hereditary priest who holds inam lands or receives a cash allowance as remuneration for the performance of his services shall, at his option, on written application to the Collector, be relieved of his obligation to perform such services when required by any villager to officiate or to provide a substitute to officiate at any religious ceremony in the village if he agrees to pay full revenue assessment on his inam lands or, as the case may be, to forego his cash allowance; provided that such option shall be allowed to be exercised once only in the case of each inam grant.

6.

Extent to which rights of hereditary Hindu priest or his alienee affected under the Act.

Nothing in this Act shall affect the rights of a hereditary Hindu

priest or an alienee from such priest to the inam Lands or cash allowance attached to his office for the performance of any service pertaining to it, except to the extent specified herein.

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